

Chapter 3

Fish and crustaceans, molluscs and other aquatic invertebrates

Notes.

1.- This Chapter does not cover :

- (a) Mammals of heading 01.06;
- (b) Meat of mammals of heading 01.06 (heading 02.08 or 02.10);
- (c) Fish (including livers and roes thereof) or crustaceans, molluscs or other aquatic invertebrates, dead and unfit or unsuitable for human consumption by reason of either their species or their condition (Chapter 5); flours, meals or pellets of fish or of crustaceans, molluscs or other aquatic invertebrates, unfit for human consumption (heading 23.01); or
- (d) Caviar or caviar substitutes prepared from fish eggs (heading 16.04).

2.- In this Chapter the term " pellets " means products which have been agglomerated either directly by compression or by the addition of a small quantity of binder.

GENERAL

This Chapter covers all fish and crustaceans, molluscs and other aquatic invertebrates, whether live or dead, presented for direct consumption, or for industrial purposes (canning, etc.), for spawning, for aquaria, etc., with the **exception** of dead fish (including livers and roes thereof), crustaceans, molluscs and other aquatic invertebrates which are unfit or unsuitable for human consumption by reason of either their species or their condition (**Chapter 5**).

The term " chilled " means that the temperature of a product has been reduced, generally to around 0 °C, without the product being frozen. The expression " frozen " means that the product has been cooled to below the product's freezing point until it is frozen throughout.

This Chapter also covers edible fish roes, i.e., fish eggs still enclosed in the ovarian membrane, not prepared or preserved, or prepared or preserved only by processes provided for in this Chapter. Otherwise prepared or preserved edible roes, whether or not enclosed in the ovarian membrane, are classified in **heading 16.04**.

Distinction between goods of this Chapter and those of Chapter 16.

This Chapter is limited to fish (including livers and roes thereof) and crustaceans, molluscs and other aquatic invertebrates in the states described in the headings. Subject to this proviso, they remain classified in the Chapter whether or not they have been cut, chopped, minced, ground, etc. In addition, mixtures or combinations of products of different headings of the Chapter (e.g., fish of **headings 03.02 to 03.04** combined with crustaceans of **heading 03.06**) remain classified in this Chapter.

On the other hand, fish and crustaceans, molluscs and other aquatic invertebrates are classified in **Chapter 16** if they have been cooked or otherwise prepared or preserved by processes not provided for in this Chapter (e.g., fish fillets merely covered with batter or bread crumbs, cooked fish); it should, however, be noted that smoked fish and smoked crustaceans, molluscs and other aquatic invertebrates, which may have undergone cooking during or before the smoking process, and crustaceans in their shells simply steamed or boiled in water, remain classified in **headings 03.05, 03.06, 03.07 and 03.08**, respectively, and that flours, meals and pellets obtained from cooked fish and cooked crustaceans, molluscs or other aquatic invertebrates remain classified in **headings 03.05, 03.06, 03.07 and 03.08**, respectively.

It should also be noted that fish and crustaceans, molluscs and other aquatic invertebrates of this Chapter remain classified here even if put up in airtight containers (e.g., smoked salmon in cans). In most cases, however, products put up in these packings have been prepared or preserved otherwise than as provided for in the headings of this Chapter, and accordingly fall to be classified in **Chapter 16**.

Similarly, fish and crustaceans, molluscs and other aquatic invertebrates of this Chapter remain classified here (e.g., fresh or chilled fish) when subjected to packaging by means of a Modified Atmospheric Packaging (MAP) process. In a MAP process the atmosphere surrounding the product is altered or controlled (e.g., by removing or reducing the oxygen content and replacing it with or increasing the nitrogen or carbon dioxide content).

In addition to the exclusions referred to above, the Chapter also **excludes** :

- (a) Mammals of **heading 01.06**.
- (b) Meat of mammals of heading 01.06 (**heading 02.08 or 02.10**).
- (c) Fish waste and inedible roes (e.g., salted cod roes used as fishing bait) (**heading 05.11**).
- (d) Flours, meals and pellets of fish or of crustaceans, molluscs or other aquatic invertebrates, unfit for human consumption (**heading 23.01**).

03.01 - Live fish (+).

- Ornamental fish

0301.11 -- Freshwater

0301.19 -- Other

- Other live fish :

0301.91 -- Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarki*,
Oncorhynchus aguabonita, *Oncorhynchus gilae*, *Oncorhynchus apache*
and *Oncorhynchus chrysogaster*)

0301.92 -- Eels (*Anguilla* spp.)

0301.93 -- Carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*,
Hypophthalmichthys spp., *Cirrhinus* spp., *Mylopharyngodon piceus*)

0301.94 -- Atlantic and Pacific bluefin tunas (*Thunnus thynnus*, *Thunnus orientalis*)

0301.95 -- Southern bluefin tunas (*Thunnus maccoyii*)

0301.99 -- Other

This heading covers all live fish, whatever their intended use (e.g., ornamental fish).

The fish of this heading are normally transported in suitable containers (aquaria, fish tanks, etc.) in which they can be kept alive in conditions similar to those found in their natural environment.

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Subheading Explanatory Note.**Subheadings 0301.11 and 0301.19**

The expression "ornamental fish" means live fish which, because of their colours or shapes, are normally used for ornamental purposes, in particular, in aquaria.

03.02

03.02 - Fish, fresh or chilled, excluding fish fillets and other fish meat of heading 03.04.

- Salmonidae, excluding livers and roes :
 - 0302.11 -- Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarki*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)
 - 0302.13 -- Pacific salmon (*Oncorhynchus nerka*, *Oncorhynchus gorbuscha*, *Oncorhynchus keta*, *Oncorhynchus tshawytscha*, *Oncorhynchus kisutch*, *Oncorhynchus masou* and *Oncorhynchus rhodurus*)
 - 0302.14 -- Atlantic salmon (*Salmo salar*) and Danube salmon (*Hucho hucho*)
 - 0302.19 -- Other
 - Flat fish (*Pleuronectidae*, *Bothidae*, *Cynoglossidae*, *Soleidae*, *Scophthalmidae* and *Citharidae*), excluding livers and roes :
 - 0302.21 -- Halibut (*Reinhardtius hippoglossoides*, *Hippoglossus hippoglossus*, *Hippoglossus stenolepis*)
 - 0302.22 -- Plaice (*Pleuronectes platessa*)
 - 0302.23 -- Sole (*Solea spp.*)
 - 0302.24 -- Turbots (*Psetta maxima*)
 - 0302.29 -- Other
 - Tunas (of the genus *Thunnus*), skipjack or stripe-bellied bonito (*Euthynnus (Katsuwonus) pelamis*), excluding livers and roes :
 - 0302.31 -- Albacore or longfinned tunas (*Thunnus alalunga*)
 - 0302.32 -- Yellowfin tunas (*Thunnus albacares*)
 - 0302.33 -- Skipjack or stripe-bellied bonito
 - 0302.34 -- Bigeye tunas (*Thunnus obesus*)
 - 0302.35 -- Atlantic and Pacific bluefin tunas (*Thunnus thynnus*, *Thunnus orientalis*)
 - 0302.36 -- Southern bluefin tunas (*Thunnus maccoyii*)
 - 0302.39 -- Other

- Herrings (*Clupea harengus*, *Clupea pallasii*), anchovies (*Engraulis spp.*), sardines (*Sardina pilchardus*, *Sardinops spp.*), sardinella (*Sardinella spp.*), brisling or sprats (*Sprattus sprattus*), mackerel (*Scomber scombrus*, *Scomber australasicus*, *Scomber japonicus*), jack and horse mackerel (*Trachurus spp.*), cobia (*Rachycentron canadum*) and swordfish (*Xiphias gladius*), excluding livers and roes :

0302.41 -- Herrings (*Clupea harengus*, *Clupea pallasii*)

0302.42 -- Anchovies (*Engraulis spp.*)

0302.43 -- Sardines (*Sardina pilchardus*, *Sardinops spp.*), sardinella (*Sardinella spp.*), brisling or sprats (*Sprattus sprattus*)

0302.44 -- Mackerel (*Scomber scombrus*, *Scomber australasicus*, *Scomber japonicus*)

0302.45 -- Jack and horse mackerel (*Trachurus spp.*)

0302.46 -- Cobia (*Rachycentron canadum*)

0302.47 -- Swordfish (*Xiphias gladius*)

- Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*, excluding livers and roes :

0302.51 -- Cod (*Gadus morhua*, *Gadus ogac*, *Gadus macrocephalus*)

0302.52 -- Haddock (*Melanogrammus aeglefinus*)

0302.53 -- Coalfish (*Pollachius virens*)

0302.54 -- Hake (*Merluccius spp.*, *Urophycis spp.*)

0302.55 -- Alaska Pollack (*Theragra chalcogramma*)

0302.56 -- Blue whittings (*Micromesistius poutassou*, *Micromesistius australis*)

0302.59 -- Other

- Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*), excluding livers and roes :

0302.71 -- Tilapias (*Oreochromis spp.*)

0302.72 -- Catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*)

0302.73 -- Carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*)

0302.74 -- Eels (*Anguilla spp.*)

0302.79 -- Other

03.02

- Other fish, excluding livers and roes :

0302.81 - - Dogfish and other sharks

0302.82 - - Rays and skates (*Rajidae*)

0302.83 - - Toothfish (*Dissostichus spp.*)

0302.84 - - Seabass (*Dicentrarchus spp.*)

0302.85 - - Seabream (*Sparidae*)

0302.89 - - Other

0302.90 - Livers and roes

This heading covers fish, fresh or chilled, whether whole, headless, gutted, or in cuts containing bones or cartilage. However, the heading **does not include** fish fillets and other fish meat of heading 03.04. The fish may be packed with salt or ice or sprinkled with salt water as a temporary preservative during transport.

Fish slightly sugared or packed with a few bay leaves remains in this heading.

Edible fish skins and other edible fish offal, livers and roes, fresh or chilled, are also classified in this heading.

03.03 - Fish, frozen, excluding fish fillets and other fish meat of heading 03.04.

- Salmonidae, excluding livers and roes :

0303.11 -- Sockeye salmon (red salmon) (*Oncorhynchus nerka*)

0303.12 -- Other Pacific salmon (*Oncorhynchus gorbuscha*, *Oncorhynchus keta*, *Oncorhynchus tshawytscha*, *Oncorhynchus kisutch*, *Oncorhynchus masou* and *Oncorhynchus rhodurus*)

0303.13 -- Atlantic salmon (*Salmo salar*) and Danube salmon (*Hucho hucho*)

0303.14 -- Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarki*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)

0303.19 -- Other

- Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*), excluding livers and roes :

0303.23 -- Tilapias (*Oreochromis spp.*)

0303.24 -- Catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*)

0303.25 -- Carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*)

0303.26 -- Eels (*Anguilla spp.*)

0303.29 -- Other

- Flat fish (*Pleuronectidae*, *Bothidae*, *Cynoglossidae*, *Soleidae*, *Scophthalmidae* and *Citharidae*), excluding livers and roes :

0303.31 -- Halibut (*Reinhardtius hippoglossoides*, *Hippoglossus hippoglossus*, *Hippoglossus stenolepis*)

0303.32 -- Plaice (*Pleuronectes platessa*)

0303.33 -- Sole (*Solea spp.*)

0303.34 -- Turbots (*Psetta maxima*)

0303.39 -- Other

03.03

- Tunas (of the genus *Thunnus*), skipjack or stripe-bellied bonito (*Euthynnus (Katsuwonus) pelamis*), excluding livers and roes :

0303.41 -- Albacore or longfinned tunas (*Thunnus alalunga*)

0303.42 -- Yellowfin tunas (*Thunnus albacares*)

0303.43 -- Skipjack or stripe-bellied bonito

0303.44 -- Bigeye tunas (*Thunnus obesus*)

0303.45 -- Atlantic and Pacific bluefin tunas (*Thunnus thynnus*, *Thunnus orientalis*)

0303.46 -- Southern bluefin tunas (*Thunnus maccoyii*)

0303.49 -- Other

- Herrings (*Clupea harengus*, *Clupea pallasii*), sardines (*Sardina pilchardus*, *Sardinops spp.*), sardinella (*Sardinella spp.*), brisling or sprats (*Sprattus sprattus*), mackerel (*Scomber scombrus*, *Scomber australasicus*, *Scomber japonicus*), jack and horse mackerel (*Trachurus spp.*), cobia (*Rachycentron canadum*) and swordfish (*Xiphias gladius*), excluding livers and roes :

0303.51 -- Herrings (*Clupea harengus*, *Clupea pallasii*)

0303.53 -- Sardines (*Sardina pilchardus*, *Sardinops spp.*), sardinella (*Sardinella spp.*), brisling or sprats (*Sprattus sprattus*)

0303.54 -- Mackerel (*Scomber scombrus*, *Scomber australasicus*, *Scomber japonicus*)

0303.55 -- Jack and horse mackerel (*Trachurus spp.*)

0303.56 -- Cobia (*Rachycentron canadum*)

0303.57 -- Swordfish (*Xiphias gladius*)

- Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*, excluding livers and roes :

0303.63 -- Cod (*Gadus morhua*, *Gadus ogac*, *Gadus macrocephalus*)

0303.64 -- Haddock (*Melanogrammus aeglefinus*)

0303.65 -- Coalfish (*Pollachius virens*)

0303.66 -- Hake (*Merluccius spp.*, *Urophycis spp.*)

0303.67 -- Alaska Pollack (*Theragra chalcogramma*)

0303.68 -- Blue whittings (*Micromesistius poutassou*, *Micromesistius australis*)

0303.69 -- Other

- Other fish, excluding livers and roes :

0303.81 -- Dogfish and other sharks

0303.82 -- Rays and skates (*Rajidae*)

0303.83 -- Toothfish (*Dissostichus spp.*)

0303.84 -- Seabass (*Dicentrarchus spp.*)

0303.89 -- Other

0303.90 - Livers and roes

The provisions of the Explanatory Note to heading 03.02 apply, *mutatis mutandis*, to the products of this heading.

03.04

03.04 - Fish fillets and other fish meat (whether or not minced), fresh, chilled or frozen.

- Fresh or chilled fillets of tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*) :

0304.31 -- Tilapias (*Oreochromis spp.*)

0304.32 -- Catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*)

0304.33 -- Nile Perch (*Lates niloticus*)

0304.39 -- Other

- Fresh or chilled fillets of other fish :

0304.41 -- Pacific salmon (*Oncorhynchus nerka*, *Oncorhynchus gorbuscha*, *Oncorhynchus keta*, *Oncorhynchus tshawytscha*, *Oncorhynchus kisutch*, *Oncorhynchus masou* and *Oncorhynchus rhodurus*), Atlantic salmon (*Salmo salar*) and Danube salmon (*Hucho hucho*)

0304.42 -- Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarki*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)

0304.43 -- Flat fish (*Pleuronectidae*, *Bothidae*, *Cynoglossidae*, *Soleidae*, *Scophthalmidae* and *Citharidae*)

0304.44 -- Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*

0304.45 -- Swordfish (*Xiphias gladius*)

0304.46 -- Toothfish (*Dissostichus spp.*)

0304.49 -- Other

- Other, fresh or chilled :

0304.51 -- Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*)

0304.52 -- Salmonidae

0304.53 -- Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*

0304.54 -- Swordfish (*Xiphias gladius*)

0304.55 -- Toothfish (*Dissostichus spp.*)

0304.59 -- Other

- Frozen fillets of tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*) :

0304.61 -- Tilapias (*Oreochromis spp.*)

0304.62 -- Catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*)

0304.63 -- Nile Perch (*Lates niloticus*)

0304.69 -- Other

- Frozen fillets of fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae* :

0304.71 -- Cod (*Gadus morhua*, *Gadus ogac*, *Gadus macrocephalus*)

0304.72 -- Haddock (*Melanogrammus aeglefinus*)

0304.73 -- Coalfish (*Pollachius virens*)

0304.74 -- Hake (*Merluccius spp.*, *Urophycis spp.*)

0304.75 -- Alaska Pollack (*Theragra chalcogramma*)

0304.79 -- Other

- Frozen fillets of other fish :

0304.81 -- Pacific salmon (*Oncorhynchus nerka*, *Oncorhynchus gorbuscha*, *Oncorhynchus keta*, *Oncorhynchus tshawytscha*, *Oncorhynchus kisutch*, *Oncorhynchus masou* and *Oncorhynchus rhodurus*), Atlantic salmon (*Salmo salar*) and Danube salmon (*Hucho hucho*)

0304.82 -- Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarki*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)

0304.83 -- Flat fish (*Pleuronectidae*, *Bothidae*, *Cynoglossidae*, *Soleidae*, *Scophthalmidae* and *Citharidae*)

0304.84 -- Swordfish (*Xiphias gladius*)

0304.85 -- Toothfish (*Dissostichus spp.*)

0304.86 -- Herrings (*Clupea harengus*, *Clupea pallasii*)

0304.87 -- Tunas (of the genus *Thunnus*), skipjack or stripe-bellied bonito (*Euthynnus* (*Katsuwonus*) *pelamis*)

0304.89 -- Other

03.04

- Other, frozen :

0304.91 - - Swordfish (*Xiphias gladius*)

0304.92 - - Toothfish (*Dissostichus spp.*)

0304.93 - - Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*)

0304.94 - - Alaska Pollack (*Theragra chalcogramma*)

0304.95 - - Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*, other than Alaska Pollack (*Theragra chalcogramma*)

0304.99 - - Other

This heading covers :

(1) Fish fillets.

For the purposes of this heading the term **fish fillets** means the strips of meat cut parallel to the backbone of the fish and constituting the right or left side of a fish insofar as the head, guts, fins (dorsal, anal, caudal, ventral, pectoral) and bones (spinal column or main backbone, ventral or costal bones, branchial bone or stapes, etc.) have been removed and the two sides are not joined together, for example by the back or belly.

The classification of these products is not affected by the possible presence of the skin, sometimes left attached to the fillet to hold it together or to facilitate subsequent slicing. Classification is similarly unaffected by the presence of pin bones or other minor bones which may not have been completely removed.

Fillets cut in pieces are also classified as fillets in this heading.

Cooked fillets, and fillets merely covered with batter or bread crumbs, whether or not frozen, are classified in heading 16.04.

(2) Other fish meat (whether or not minced), i.e., fish meat from which the bones have been removed. As in the case of fish fillets, classification of fish meat is unaffected by the presence of minor bones which may not have been completely removed.

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This heading covers fish fillets and other fish meat (whether or not minced) in the following states only :

- (i) Fresh or chilled, whether or not packed with salt or ice or sprinkled with salt water as a temporary preservative during transport.
- (ii) Frozen, often presented in the form of frozen blocks.

Fish fillets and other fish meat (whether or not minced) slightly sugared or packed with a few bay leaves remain in this heading.

03.05 - Fish, dried, salted or in brine; smoked fish, whether or not cooked before or during the smoking process; flours, meals and pellets of fish, fit for human consumption (+).

0305.10 - Flours, meals and pellets of fish, fit for human consumption

0305.20 - Livers and roes of fish, dried, smoked, salted or in brine

- Fish fillets, dried, salted or in brine, but not smoked :

0305.31 -- Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*)

0305.32 -- Fish of the families *Bregmacerotidae*, *Euclichthyidae*, *Gadidae*, *Macrouridae*, *Melanonidae*, *Merlucciidae*, *Moridae* and *Muraenolepididae*

0305.39 -- Other

- Smoked fish, including fillets, other than edible fish offal :

0305.41 -- Pacific salmon (*Oncorhynchus nerka*, *Oncorhynchus gorbuscha*, *Oncorhynchus keta*, *Oncorhynchus tshawytscha*, *Oncorhynchus kisutch*, *Oncorhynchus masou* and *Oncorhynchus rhodurus*), Atlantic salmon (*Salmo salar*) and Danube salmon (*Hucho hucho*)

0305.42 -- Herrings (*Clupea harengus*, *Clupea pallasii*)

0305.43 -- Trout (*Salmo trutta*, *Oncorhynchus mykiss*, *Oncorhynchus clarki*, *Oncorhynchus aguabonita*, *Oncorhynchus gilae*, *Oncorhynchus apache* and *Oncorhynchus chrysogaster*)

0305.44 -- Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*)

0305.49 -- Other

- Dried fish, other than edible fish offal, whether or not salted but not smoked :

0305.51 -- Cod (*Gadus morhua*, *Gadus ogac*, *Gadus macrocephalus*)

0305.59 -- Other

03.05

- Fish, salted but not dried or smoked and fish in brine, other than edible fish offal :

0305.61 -- Herrings (*Clupea harengus*, *Clupea pallasii*)

0305.62 -- Cod (*Gadus morhua*, *Gadus ogac*, *Gadus macrocephalus*)

0305.63 -- Anchovies (*Engraulis spp.*)

0305.64 -- Tilapias (*Oreochromis spp.*), catfish (*Pangasius spp.*, *Silurus spp.*, *Clarias spp.*, *Ictalurus spp.*), carp (*Cyprinus carpio*, *Carassius carassius*, *Ctenopharyngodon idellus*, *Hypophthalmichthys spp.*, *Cirrhinus spp.*, *Mylopharyngodon piceus*), eels (*Anguilla spp.*), Nile perch (*Lates niloticus*) and snakeheads (*Channa spp.*)

0305.69 -- Other

- Fish fins, heads, tails, maws and other edible fish offal :

0305.71 -- Shark fins

0305.72 -- Fish heads, tails and maws

0305.79 -- Other

This heading covers fish (whole, headless, in pieces, in fillets or minced) and edible fish offal which are :

- (1) dried;
- (2) salted or in brine; or
- (3) smoked.

The salt used in the preparation of fish, salted or in brine, may contain added sodium nitrite or sodium nitrate. Small quantities of sugar may be used in the preparation of salted fish without affecting the classification of the fish in this heading.

Fish having undergone two or more of these processes remains classified here, as do fish flour and fish meal (whether or not defatted (for example, defatted by a solvent-extract method) or subjected to heat treatment) and pellets of fish, fit for human consumption.

Smoked fish is sometimes submitted, either before smoking or during smoking (hot smoking), to a heat treatment which partly or wholly cooks the meat; this does not affect its classification in this heading **provided** that it has not undergone any other processing which deprives it of the character of smoked fish.

The principal varieties of fish prepared in the manner covered by this heading are sardines, anchovies, pilchards, sprats, tunas, mackerel, salmon, herring, cod, haddock and halibut.

Edible fish offal separated from the rest of the body of the fish (e.g., skins, tails, maws (air bladders), heads and halves of heads (with or without the brains, cheeks, tongues, eyes, jaws or lips), stomachs, fins), as well as livers and roes, dried, salted, in brine or smoked, are also classified in this heading.

The heading does not cover :

- (a) Inedible fish offal (e.g., of a kind used in industrial applications) and fish waste (heading 05.11).
- (b) Cooked fish (subject to the above provisions regarding smoked fish) and fish prepared in any other way, for example preserved in oil or vinegar or in a marinade, and caviar and caviar substitutes (heading 16.04).
- (c) Fish soups (heading 21.04).
- (d) Flours, meals and pellets of fish, unfit for human consumption (heading 23.01).

Subheading Explanatory Note.

Subheading 0305.71

For the purposes of subheading 0305.71, the term "shark fins" covers dorsal, pectoral, ventral, anal fins and the lower lobe of the tail (caudal fin) of sharks. However, the upper parts of shark tails are **not** regarded as shark fins.

This subheading includes, *inter alia*, unskinned sharks' fins, simply dried, and parts of sharks' fins which have been immersed in hot water, skinned or shredded before drying.

03.06

03.06 - Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process; crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine; flours, meals and pellets of crustaceans, fit for human consumption.

- Frozen :

0306.11 -- Rock lobster and other sea crawfish (*Palinurus spp.*, *Panulirus spp.*, *Jasus spp.*)

0306.12 -- Lobsters (*Homarus spp.*)

0306.14 -- Crabs

0306.15 -- Norway lobsters (*Nephrops norvegicus*)

0306.16 -- Cold-water shrimps and prawns (*Pandalus spp.*, *Crangon crangon*)

0306.17 -- Other shrimps and prawns

0306.19 -- Other, including flours, meals and pellets of crustaceans, fit for human consumption

- Not frozen :

0306.21 -- Rock lobster and other sea crawfish (*Palinurus spp.*, *Panulirus spp.*, *Jasus spp.*)

0306.22 -- Lobsters (*Homarus spp.*)

0306.24 -- Crabs

0306.25 -- Norway lobsters (*Nephrops norvegicus*)

0306.26 -- Cold-water shrimps and prawns (*Pandalus spp.*, *Crangon crangon*)

0306.27 -- Other shrimps and prawns

0306.29 -- Other, including flours, meals and pellets of crustaceans, fit for human consumption

This heading covers :

- (1) Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine.
- (2) Smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process.
- (3) Crustaceans, in their shells, cooked by steaming or by boiling in water (whether or not small quantities of provisional chemical preserving agents have been added); they may also be chilled, frozen, dried, salted or in brine.

The main kinds of crustaceans are lobsters, sea crawfish, crayfish, crabs, shrimps and prawns.

The heading also covers parts of crustaceans (e.g., " tails " of lobsters or crayfish, crabs' claws), **provided** those not in shell have been subjected to no other processes than those specified in (1) above.

The heading also includes flours, meals and pellets of crustaceans fit or suitable for human consumption.

The heading does not cover :

- (a) Sea-urchins and other aquatic invertebrates of heading 03.08.**
- (b) Crustaceans (including parts thereof) prepared or preserved by processes not provided for in this heading (e.g., shelled crustaceans boiled in water) (heading 16.05).**

03.07

03.07 - Molluscs, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked molluscs, whether in shell or not, whether or not cooked before or during the smoking process; flours, meals and pellets of molluscs, fit for human consumption.

- Oysters :

0307.11 -- Live, fresh or chilled

0307.19 -- Other

- Scallops, including queen scallops, of the genera *Pecten*, *Chlamys* or *Placopecten* :

0307.21 -- Live, fresh or chilled

0307.29 -- Other

- Mussels (*Mytilus* spp., *Perna* spp.) :

0307.31 -- Live, fresh or chilled

0307.39 -- Other

- Cuttle fish (*Sepia officinalis*, *Rossia macrosoma*, *Sepiola* spp.) and squid (*Ommastrephes* spp., *Loligo* spp., *Nototodarus* spp., *Sepioteuthis* spp.) :

0307.41 -- Live, fresh or chilled

0307.49 -- Other

- Octopus (*Octopus* spp.) :

0307.51 -- Live, fresh or chilled

0307.59 -- Other

0307.60 - Snails, other than sea snails

- Clams, cockles and ark shells (families *Arcidae*, *Arctiidae*, *Cardiidae*, *Donacidae*, *Hiatellidae*, *Mactridae*, *Mesodesmatidae*, *Myidae*, *Semelidae*, *Solecurtidae*, *Solenidae*, *Tridacnidae* and *Veneridae*) :

0307.71 -- Live, fresh or chilled

0307.79 -- Other

- Abalone (*Haliotis* spp.) :

0307.81 -- Live, fresh or chilled

0307.89 -- Other

- Other, including flours, meals and pellets, fit for human consumption :

0307.91 -- Live, fresh or chilled

0307.99 -- Other

This heading covers :

- (1) Molluscs, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine.
- (2) Smoked molluscs, whether in shell or not, whether or not cooked before or during the smoking process.

The main kinds of molluscs are oysters, scallops, mussels, cuttle fish, squid, octopus, snails, clams, cockles, ark shells and abalone.

This heading also covers parts of molluscs, **provided** they have been subjected to no other processes than those specified in (1) or (2) above.

The heading also includes oyster spat (small oysters intended for cultivation) and flours, meals and pellets of molluscs, fit or suitable for human consumption.

The heading **does not cover** molluscs prepared or preserved by processes not provided for in this heading (e.g., molluscs boiled in water or preserved in vinegar) (**heading 16.05**).

03.08

03.08 - Aquatic invertebrates other than crustaceans and molluscs, live, fresh, chilled, frozen, dried, salted or in brine; smoked aquatic invertebrates other than crustaceans and molluscs, whether or not cooked before or during the smoking process; flours, meals and pellets of aquatic invertebrates other than crustaceans and molluscs, fit for human consumption.

- Sea cucumbers (*Stichopus japonicus*, *Holothurioidea*) :

0308.11 - - Live, fresh or chilled

0308.19 - - Other

- Sea urchins (*Strongylocentrotus* spp., *Paracentrotus lividus*, *Loxechinus albus*, *Echichinus esculentus*) :

0308.21 - - Live, fresh or chilled

0308.29 - - Other

0308.30 - - Jellyfish (*Rhopilema* spp.)

0308.90 - Other

This heading covers :

- (1) Aquatic invertebrates other than crustaceans and molluscs, live, fresh, chilled, frozen, dried, salted or in brine.
- (2) Smoked aquatic invertebrates other than crustaceans and molluscs, whether or not cooked before or during the smoking process.

The principal varieties of aquatic invertebrates are sea-urchins, sea cucumbers (beches-de-mer) and jellyfish.

This heading also covers parts of aquatic invertebrates (e.g., gonads of sea-urchins), **provided** they have been subjected to no other processes than those specified in (1) or (2) above.

The heading also includes flours, meals and pellets of aquatic invertebrates, fit or suitable for human consumption.

The heading **does not cover** aquatic invertebrates prepared or preserved by processes not provided for in this heading (e.g., aquatic invertebrates boiled in water or preserved in vinegar) (**heading 16.05**).